



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAY 16 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9934
(FIRST REVISION)

1. Advanced Research Chemicals, Inc., Catoosa, Oklahoma, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a certain Class 8 for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes use of non-DOT specification Teflon bottles packed in non-DOT specification fiberboard boxes, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Advanced Research Chemicals, Inc.'s application dated September 15, 1994, submitted in accordance with 49 CFR 107.105.
3. HAZARDOUS MATERIALS (Descriptor and class). Fluorosulfonic acid, Class 8, UN1777 (Packing Group I).
4. PROPER SHIPPING NAME (49 CFR 172.101). Fluorosulfonic acid.
5. REGULATION AFFECTED. 49 CFR 173.274(a), 175.3.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, cargo-aircraft only.
7. SAFETY CONTROL MEASURES. Packaging prescribed for fluorosulfonic acid is a Nalgene FEP (Teflon) bottle having a capacity of not more than one pint and a wall thickness of not less than 0.030 inch. The bottle must have a threaded closure. The filled bottle must be tightly closed and sealed with tape or equivalent material. There must be sufficient outage in the bottle so that it will not become liquid-full at 130°F. This inner container must be placed in a heat-sealed barrier bag. The bagged inner container must be placed in a strong, rigid can and surrounded by vermiculite or an equivalent non-reactive material to completely absorb the contents of the inner container. The can must be full with the absorbent material to prevent movement of the inner container during transportation and securely closed. The can must be placed in a securely closed single-wall carton constructed of 275 pound test fiberboard. This carton must be placed in a heat-sealed barrier bag and then in a tightly fitting, securely closed, doubled-wall carton constructed of 600 pound test fiberboard. The packaging must comply with the basic design criteria of United Parcel Service (UPS) Package Number 37 described in the UPS "Guide for Shipping Hazardous Materials", except the marking reference must be to this exemption, "DOT-E 9934".

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modification or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. A copy of this exemption must be carried aboard each cargo-aircraft or motor vehicle used to transport the packages covered by this exemption. In accordance with the provisions of 49 CFR Part 107, Appendix B to Subpart B, paragraph 3, the shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

c. No new construction of the packaging identified in Paragraph 7 of this exemption is authorized after September 30, 1994. As the holder of this exemption, you may request a renewal to continue the use of the packaging, manufactured prior to September 30, 1994, however, the exemption will not carry an expiration date subsequent to September 30, 1996 since use of the packaging is prohibited after that date. This is consistent with the transitional provisions of 49 CFR Section 171.14 and the implementation of the new packaging requirements adopted under Docket HM-181.

9. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

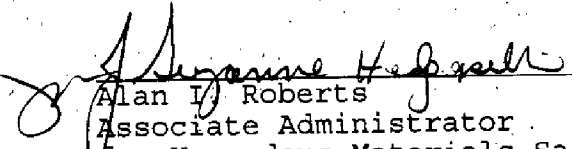
11. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

11. EXPIRATION DATE. September 30, 1996.

Issued at Washington, D.C.:

MAY 16 1995

(DATE)


Alan D. Roberts
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, DC 20590. Attention DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA, FAA



U.S. Department
of Transportation

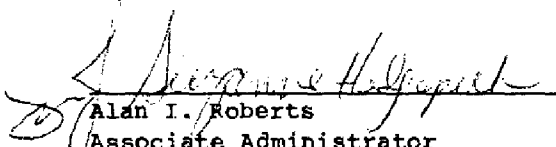
Research and
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400 Seventh Street, S.W.
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DOT-E 9934 (EXTENSION)
ORIGINAL September 8, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9934 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 28 1993

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Advance Research Chemicals, Inc.
Catoosa, OK

October 26, 1993

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 9934

AUG 16 1988

1. Aldrich Chemical Company, Inc., Milwaukee, Wisconsin, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a certain corrosive liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes use of non-DOT specification Teflon bottles packed in non-DOT specification fiberboard boxes, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Aldrich Chemical Company, Incorporated's application dated February 12, 1988, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Fluorosulfonic acid, classed as corrosive material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Fluorosulfonic acid.

5. REGULATION AFFECTED. 49 CFR 173.274(a), 175.3.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, cargo-aircraft only.

7. SAFETY CONTROL MEASURES. Packaging prescribed for fluorosulfonic acid is a Naigene FEP (Teflon) bottle having a capacity of not more than one pint and a wall thickness of not less than 0.030 inch. The bottle must have a threaded closure. The filled bottle must be tightly closed and sealed with tape or equivalent material. There must be sufficient outage in the bottle so that it will not be come liquid-full at 130°F. This inner container must be placed in a heat-sealed barrier bag. The bagged inner container must be placed in a strong, rigid can and surrounded by vermiculite or an equivalent non-reactive material to completely absorb the contents of the inner container. The can must be full with the absorbent material to prevent movement of the inner container during transportation and securely closed. The can must be placed in a securely closed single-wall carton constructed of 275 pound test fiberboard. This carton must be placed in a heat-sealed barrier bag and then in a tightly fitting, securely closed, doubled-wall carton constructed of 600 pound test fiberboard. The packaging must comply with the basic design criteria of United Parcel Service (UPS) Package Number 37 described in the UPS "Guide for Shipping Hazardous Materials", except the marking reference must be to this exemption, "DOT-E 9934".

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. June 30, 1990.

Issued at Washington, D.C.:

AUG 16 1988


Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FAA